

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MINNESOTA**

JOSEPH KIRCHNER,
Plaintiff,

v.

KEITH ELLISON, in his official
capacity as Attorney General of
the State of Minnesota,
Defendant.

Case No. 26-CV-2594 (LMP/DJF)

**EXHIBIT 1: KIRCHNER I
CONFERRAL CHAIN (MARCH 6-9,
2026)**

Friday, March 13, 2026 at 1:51:17 AM Central Daylight Time

Subject: Re: Joseph Kirchner v. Keith Ellison Meet and Confer
Date: Monday, March 9, 2026 at 10:01:14 AM Central Daylight Time
From: legal@lawsofexistence.com
To: Matthew McGuire
CC: Alexandra Roux
Attachments: image001.png

Mr. McGuire,

I will file my amended complaint in accordance with the Federal Rules of Civil Procedure following your motion. I accept your offer of electronic service.

Best regards,

Joseph Kirchner
legal@lawsofexistence.com
www.lawsofexistence.com

From: Matthew McGuire <Matthew.McGuire@ag.state.mn.us>
Date: Monday, March 9, 2026 at 8:47 AM
To: "legal@lawsofexistence.com" <legal@lawsofexistence.com>
Cc: Alexandra Roux <Alexandra.Roux@ag.state.mn.us>
Subject: RE: Joseph Kirchner v. Keith Ellison Meet and Confer

Thank you for your message, Mr. Kirchner. Suffice to say the parties do not agree on the disposition of the case.

When are you planning on filing your amended complaint? I will accept electronic service of the amended complaint via email.

Best,



Matthew A. McGuire
Assistant Attorney General
Employment, Tort, & Public Utilities Division
Office of Minnesota Attorney General Keith Ellison
445 Minnesota Street, Suite 1400, St. Paul, MN 55101-2131

(651) 300-7482 Office
Matthew.McGuire@ag.state.mn.us
www.ag.state.mn.us

From: legal@lawsofexistence.com <legal@lawsofexistence.com>
Sent: Friday, March 6, 2026 6:41 PM
To: Matthew McGuire <Matthew.McGuire@ag.state.mn.us>
Cc: Alexandra Roux <Alexandra.Roux@ag.state.mn.us>
Subject: Re: Joseph Kirchner v. Keith Ellison Meet and Confer

Mr. McGuire,

Thank you for your email. I decline to voluntarily dismiss.

Before your office files a motion to dismiss, I would encourage you to review Minnesota Statutes §§ 8.01 and 8.31. Your office's position—that the Legislature "did not delegate" investigative or prosecutorial authority to the Attorney General—finds no support in statutory text. Section 8.01 grants broad discretionary authority; § 8.31 mandates investigation of consumer fraud without any referral requirement. The "upon request" provisions in § 8.01 are additional pathways, not exclusive limitations.

I have prepared an amended complaint that documents this in detail, including the identical false claim appearing on multiple AG website pages since at least 2015, and Attorney General Ellison's March 4, 2026 congressional testimony stating the same unsupported limitation under oath.

Given the scrutiny your office has already faced regarding fraud enforcement in Minnesota, I would respectfully ask whether this is a position the Attorney General wishes to defend in federal court. I remain willing to discuss cooperation in the interest of Minnesota citizens.

Joseph Kirchner
4440 Parklawn Avenue #203
Edina, MN 55435
(612) 552-2122
legal@lawsofexistence.com
www.lawsofexistence.com

From: Matthew McGuire <Matthew.McGuire@ag.state.mn.us>
Date: Friday, March 6, 2026 at 8:19 AM
To: "legal@lawsofexistence.com" <legal@lawsofexistence.com>
Cc: Alexandra Roux <Alexandra.Roux@ag.state.mn.us>
Subject: Joseph Kirchner v. Keith Ellison Meet and Confer

Good morning Mr. Kirchner,

As you may be aware, AG Ellison is preparing to file a motion to dismiss this case for failure to state a claim, lack of jurisdiction, and failure to join the federal government as an essential party. The Federal Rules of Civil Procedure require the parties to meet and confer to attempt to resolve disputes before motions are filed.

I am writing to ask if you will voluntarily dismiss your complaint against the AG. While I appreciate the seriousness of your allegations, our position is that your allegations primarily concern the actions of the federal government and do not implicate AG Ellison. We are not willing to resolve this case in any other manner.

If I do not hear from you by noon on Monday, March 9, 2026, I will file the motion to dismiss.

Best regards,



Matthew A. McGuire

Assistant Attorney General

Employment, Tort, & Public Utilities Division

Office of Minnesota Attorney General Keith Ellison

445 Minnesota Street, Suite 1400, St. Paul, MN 55101-2131

(651) 300-7482 Office

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